

24CHCV03213 24CHCV03213

County: los-angeles

Division: Civil Law and Motion

Department: F47

Hearing date: 2026-09-17

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=CHA%2CF47%2C09%2F17%2F2026

Source SHA-256: 3e901cbe05863396f70fbb7dac3c6d7e5afdf05d2dba97d62a4f281614f1833d

Case Number: 24CHCV03213 Hearing Date: September 17, 2026 Dept: F47

Dept. F47

Date: 9/17/26 TRIAL DATE: 11/16/26

Case #24CHCV03213

SUMMARY ADJUDICATION

Motion filed on 3/27/26.

MOVING PARTY: Plaintiff Ralph Sasson

RESPONDING PARTY: Defendants Bernard Collins, Quentin Collins and Armene Voskanyan

NOTICE: ok

RELIEF REQUESTED: An order granting summary adjudication in favor of Plaintiff and against Defendants Quentin Collins and Bernard Collins on various issues.

RULING: The motion is granted.

SUMMARY OF FACTS & RELEVANT PROCEDURAL HISTORY

This action arises out of a dog attack that occurred on 4/25/24 and ensuing confrontations and/or altercations between Plaintiff/former Cross-Defendant Ralph Sasson (Plaintiff) and Defendants Quentin (Quentin) Collins, Bernard Collins (Bernard) and Armene Voskanyan (Armene) (collectively, Defendants) occurring on 4/25/24, 4/26/24, 4/27/24 and 7/10/24.

On 9/6/24, Plaintiff filed this action against Defendants for: (1) Strict Liability (Bernard & Armene), (2) Negligence Per Se (Bernard & Armene), (3) Negligence (Bernard & Armene), (4) Trespass to Chattels (Bernard & Armene), (5) Negligent Supervision (Bernard & Armene), (6) Assault I (Quentin), (7) Assault II (Quentin), (8) Battery (Quentin), (9) Trespass to Land

(Quentin), (10) Assault (Bernard), (11) Battery (Bernard), (12) Trespass to Land I (Bernard), (13) Trespass to Land II (Bernard), (14) Slander Per Se (Bernard) and (15) Intentional Infliction of Emotional Distress (Bernard & Quentin).

On 10/25/24, Defendants, representing themselves, answered the complaint. On 2/13/25, represented by counsel, each Defendant filed an Amended Answer to the complaint.

On 3/27/26, Plaintiff filed and served the instant motion for summary adjudication against Quentin and Bernard as to the following issues:

Issue No. 1: Defendants' Third Affirmative Defense for apportionment has no merit and there is no triable issue of material fact as to that defense.

Issue No. 2: Defendants' Fourth Affirmative Defense for assumption of risk has no merit and there is no triable issue of material fact as to that defense.

Issue No. 3: Defendants' Sixth Affirmative Defense for comparative fault has no merit and there is no triable issue of material fact as to that defense.

Issue No. 4: Defendants' Eighth Affirmative Defense for intervening and superseding cause has no merit and there is no triable issue of material fact as to that defense.

Issue No. 5: Defendants' Ninth Affirmative Defense for justification and/or excuse has no merit and there is no triable issue of material fact as to that defense.

Issue No. 6: Defendants' Tenth Affirmative Defense relating to lack of malice and/or punitive damages has no merit and there is no triable issue of material fact as to that defense.

Issue No. 7: Defendants' Thirteenth Affirmative Defense relating to proximate cause, including cause of Plaintiff and/or cause of others, has no merit and there is no triable issue of material fact as to that defense.

Issue No. 8: Defendants' Fourteenth Affirmative Defense relating to proximate cause of the Plaintiff has no merit and there is no triable issue of material fact as to that defense.

Issue No. 9: Defendants' Fifteenth Affirmative Defense relating to lack of malice and/or punitive damages has no merit and there is no triable issue of material fact as to that defense.

Issue No. 10: Defendants' Seventeenth Affirmative Defense for unclean hands has no merit and there is no triable issue of material fact as to that defense.

Issue No. 11: Bernard's Eighteenth Affirmative Defense for immunity has no merit and there is no triable issue of material fact as to that defense.

Issue No. 12: Bernard's Nineteenth Affirmative Defense for truth has no merit and there is no triable issue of material fact as to that defense.

Issue No. 13: Bernard's Twentieth Affirmative Defense for privilege has no merit and there is no triable issue of material fact as to that defense.

Issue No. 14: Bernard owed Plaintiff a duty of care, as a matter of law, with respect to Plaintiff's causes of action for negligence per se, negligence, and negligent supervision, and there is no triable issue of material fact as to that issue.

On 5/26/26, Plaintiff filed and served a Notice of Errata Re: Plaintiff's Separate Statement in support of the motion and a corrected Separate Statement.

No opposition to the motion has been filed.

On 9/8/26, the Court denied Defendants' ex parte application (filed on 9/3/26) to continue the hearing date on Plaintiff's motion for summary adjudication and conform the briefing schedule accordingly on the ground that it was untimely pursuant to CCP 437c(h). (See 9/8/26 Minute Order).

ANALYSIS

CCP 437c(f)(1) provides:

"A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs. A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty." (emphasis added).

9th Affirmative Defense: Justification/Excuse

The doctrine of collateral estoppel/issue preclusion precludes the relitigation of issues argued and decided in a prior proceeding. See Hernandez (2009) 46 C4th 501, 511. In order for the doctrine to apply, the following requirements must be met: (1) the issue sought to be precluded from relitigation must be identical to that decided in a former proceeding; (2) this issue must have been actually litigated in the former proceeding; (3) this issue must have been necessarily decided in the former proceeding; (4) the decision in the former proceeding must be final and on the merits; and (5) the party against whom preclusion is sought must be the same as, or in privity with, the party to the former proceeding. *Id.*; Lucido (1990) 51 C3d 335, 341.

Issue preclusion depends on what issues were adjudicated, not the label of the proceeding or form of relief; therefore, findings in an equitable action such as a Civil Harassment Restraining Order (CHRO) proceeding may preclude relitigation in a later civil action for damages. See Lumpkin (1996) 49 CA4th 1223, 1231; Bennett (2019) 35 CA5th 908, 919.

Here, the issues in the proceeding regarding Plaintiff's and Defendants' competing CHRO petitions are identical as they address identical factual allegations. See Hernandez, *supra* at 511-512. Bernard's CHRO petition against Plaintiff alleged that on April 27, Plaintiff "spit on" Quentin and was "threatening [Quentin] with physical violence." (Separate Statement (SS) 67). Quentin also claimed Plaintiff spat on him and "swung first." (SS 70-71). In Plaintiff's CHRO petitions, Plaintiff alleged that Quentin stormed across his property, trespassed onto Plaintiff's lawn, and punched him first, after which Bernard joined the beating. (SS 65-66).

The issues of whether Plaintiff was the initial aggressor, whether Plaintiff spat on Quentin, whether Plaintiff threatened physical violence, whether Quentin and Bernard were responding defensively, whether the encounter was mutual, and whether Bernard and Quentin were lawfully on Plaintiff's property which underlie Quentin's and Bernard's defense of justification/excuse are the same issues which were decided against them in the trial on the CHRO petitions.

The CHRO court found Bernard came onto Plaintiff's property without permission and stayed after being told to leave. (SS 10-11, 15-25, 75). The CHRO court also found that Quentin made threats of violence on April 25. (SS 12-18, 20, 76). Additionally, the CHRO court found that on April 27 Plaintiff's alleged words were "not threats but hurtful words," while Quentin was the one "making threats that he's going to beat Mr. Sasson," and that Quentin's recorded run across two houses showed he was "actually ready to fight." (SS 26-50, 77-78). The Appellate Court confirmed the same underlying facts (e.g. that Plaintiff committed no unlawful violence or made a threat of violence, and footage showing Plaintiff yelling from his property while Defendants responded with threats and Quentin crossed onto Plaintiff's front lawn). (SS 96-97, 100-104).

The foregoing issues were actually litigated by the CHRO court. The evidence shows that Bernard's CHRO petition alleged Plaintiff spit and physical threats by Plaintiff. (SS 67). Quentin testified to Plaintiff spitting and Plaintiff allegedly swinging first. (SS 70-71). Bernard testified to Plaintiff spitting. (SS 69). Plaintiff pleaded and testified the opposite: threats, trespass, and first punch by Quentin, joined by Bernard. (SS 65-66). The video was introduced into evidence and argued. (SS 26-29, 73). The CHRO court heard and saw all of it. The spitting issue, the aggressor issue, the threat issue, the trespass issue, and the defensive force issue were at the center of the hearing/trial on the CHRO petitions. Under California law, an issue may be "actually litigated" even where the prior determination reflects a failure of proof rather than an express finding saying "I reject X." See Younan (1996) 51 CA4th 401, 407. Therefore, when the CHRO court heard the spitting allegation, the "swing first" allegation, and found Quentin's running onto Plaintiff's property was a violent attack and Bernard's entry onto Plaintiff's property was unauthorized harassment, while finding Plaintiff did not engage in any unlawful threats or violence, the issues were decided against Quentin and Bernard and in favor of Plaintiff. (SS 69-80, 99-104).

The foregoing issues were necessarily decided in the proceeding on the CHRO petitions; otherwise, a CHRO could not have been issued against Bernard and Quentin. (See 10-11, 15-50, 53-54, 67-86, 89-90, 94-95, 100-102).

The decision of the CHRO court is final as Defendants never appealed the orders. (SS 98). Additionally, Plaintiff's request for appellate review of the CHRO imposed against him resulted in a reversal. (SS 64-80, 98-104).

The trial of the CHRO petitions involved the same parties: Plaintiff, Quentin and Bernard.

4th Affirmative Defense: Assumption of Risk

Assumption of risk only provides a defense for negligence actions and does not apply to actions based on intentional or reckless conduct. Ordway (1988) 198 CA3d 98, 108. Where the doctrine of assumption of risk does apply, it "requires knowledge and appreciation of the risk, and a voluntary choice to encounter it." Gallegos (1955) 137 CA2d 14, 19. The unrefuted evidence establishes that Plaintiff had no knowledge that Bernard posted on the neighborhood What's App page that he was letting his dogs run off leash on the night of the dog attack. (SS 3, 8). There is also no evidence to support a finding that Plaintiff assumed the risk of any conduct for which he claims injury and/or damages in this action.

3rd Affirmative Defense: Apportionment of Fault & 6th Affirmative Defense: Comparative Fault

A contributory negligence defense which bars all recovery by a Plaintiff found to be partially at fault no longer exists under California law. Li (1975) 13 C3d 804, 829.

The elements of comparative fault are: (1) relative responsibility of various parties for an injury; and (2) equitable apportionment of loss in proportion to the parties' comparative responsibilities. See Knight (1992) 3 C4th 296, 314. However, the defense of apportionment of fault does not apply where the defendant has committed an intentional tort and the injured

plaintiff was merely negligent. See Heiner (2000) 84 CA4th 335, 350. As noted above in relation to the 9th cause of action, the CHRO proceeding already decided the issues against Quentin and Bernard with regard to their intentional conduct.

Even if comparative/apportionment of fault could apply, Quentin and Bernard would have to produce evidence of actual negligence on the part of Plaintiff that caused injury. CACI 405. Quentin and Bernard have failed to do so. The unrefuted evidence does not establish negligence on the part of Plaintiff that contributed to his claimed injuries/damages in this case.

8th Affirmative Defense: Intervening and Superseding Cause; 13th Affirmative Defense: Proximate Cause – Other Person & 14th Affirmative Defense: Proximate Cause – Plaintiff

Conduct cannot be considered as a substantial factor in causing harm if the same harm would have occurred without that conduct. Yanez (2013) 221 CA4th 180, 187. Here, the unrefuted evidence shows that Bernard's conduct was the direct, substantial factor in causing the dog attack/trespass to chattels. (SS 1-6). The substantial factor causing harm was Bernard's unleashed dogs, not Plaintiff standing on his own property. Similarly, the unrefuted evidence establishes that Plaintiff did not cause the later threats, trespasses, and assault by Quentin and Bernard. Defendants who refuse to leave private property and a defendant who refuses to control his son cannot blame the victim for objecting. (SS 14-25, 31-47). There is also no evidence of any superseding cause or other person that caused Plaintiff's claimed injuries/damages in this case.

17th Affirmative Defense: Unclean Hands

The doctrine of unclean hands "cannot be distorted into a proceeding to try the general morals of the parties." Fibreboard Paper Products Corp. (1964) 227 CA2d 675, 729. Nor may equitable defenses be used to nullify claims grounded in legislatively declared public policy. Salas (2014) 59 C4th 407, 432. With regard to the dog attack claims, the alleged wrongdoing by Bernard occurred before any purported misconduct by Plaintiff and was wholly independent of it. Bernard admitted Plaintiff and Plaintiff's dogs were lawfully on Plaintiff's property, that Bernard's dogs charged onto that property, and that he knew his dogs were "aggressive," foresaw the danger, and still let them roam off leash. (SS 1-6). With regard to the garage confrontation and April 27 attack, Plaintiff's conduct cannot be deemed inequitable as it has already been determined in the CHRO proceedings that Quentin and Bernard acted improperly and Plaintiff was lawfully on his property. Additionally, Plaintiff's wife has submitted a declaration indicating that she never invited Quentin or Bernard onto Plaintiff's property. (SS 14, 19-22). Even if Plaintiff used profanity towards Quentin and/or Bernard, such conduct does not amount to the sort of inequitable conduct that bars relief. As noted above, the CHRO court found Plaintiff never threatened anyone, and the Appellate Court emphasized there was no finding that Plaintiff committed unlawful violence or made threats of violence. (SS 31, 77-79, 100-104). As such, the evidence does not support a finding that unclean hands of Plaintiff bar recovery.

10th Affirmative Defense: No Malicious Intent & 15th Affirmative Defense: Punitive Damages Barred

As noted above with regard to collateral estoppel/issue preclusion in relation to the 9th Affirmative Defense, Defendants are precluded from relitigating the issue that Plaintiff was purportedly the aggressor. The evidence establishes that on April 25, Quentin threatened Plaintiff in the garage and on the driveway, while Bernard allowed him to remain on Plaintiff's property even though Plaintiff's wife did not consent to their presence, and Plaintiff repeatedly ordered them to leave and called 911. (SS 10-25). The evidence also establishes that on April 27, Quentin again threatened Plaintiff, Bernard joined in with his own threats, Quentin changed his shoes, sprinted onto Plaintiff's lawn to attack, and Bernard admitted he believed Quentin was running to physically attack Plaintiff. (SS 26-50, 94-95). Bernard then joined the attack, came onto Plaintiff's property, and choked Plaintiff, later admitting the chokehold could have killed him and expressly tying the "consequences" to Plaintiff's speech while changing their spitting story in their own pleadings. (SS 51-63, 85-86). The foregoing unrefuted evidence does not support the defenses of no malicious intent or a finding that punitive damages are barred.

As to Bernard Only - 18th Affirmative Defense: Statutory Immunity; 19th Affirmative Defense: Truth - As to Slander Claims & 20th Affirmative Defense: Privilege – As to Slander Claims

The defense of truth fails because Defendants' spitting accusation was litigated and rejected as set forth above under the 9th cause of action regarding collateral estoppel/issue preclusion. Additionally, Plaintiff alleged Bernard was falsely telling neighbors that Plaintiff spat on Quentin, and Bernard refused to deny those factual allegations in his verified answer. (SS 87-88). A party cannot dodge a pleaded fact in a verified pleading and then later pretend the opposite is established truth. Walker (1966) 240 CA2d 118, 120; Travelers Ins. Co. (1932) 123 Cal.App. 473, 482 (if a defendant does not deny a material allegation, the fact "is not in issue, and no evidence need be offered to prove [it]."); Hennefer (1986) 182 CA3d 492, 504 ("[t]otal failure to deny a material allegation necessarily results in an admission.").

The defense of privilege fails because the litigation privilege does not extend to extrajudicial statements to outsiders who have no connection to the proceeding and whose involvement does nothing to achieve its objects. Mallard (2010) 188 CA4th 531, 543. Here, the alleged statements were made to neighbors, not to participants in litigation, and Bernard refused to deny that he made those false statements to them. (SS 87-88).

The defense of immunity fails because the First Amendment does not protect defamatory falsehoods. ZL Technologies, Inc. (2017) 13 CA5th 603, 611. Therefore, once the purported factual predicate for Bernard's speech defense collapses, so does the immunity theory it is built on. (SS 81-90, 100-104).

Bernard's Duty to Plaintiff

With regard to the negligence and negligence per se causes of action, Bernard admitted he was walking his three large German Shepherds off leash through a residential neighborhood, knew they were "aggressive," foresaw the risk of harm, and disregarded that risk anyway. (SS 2, 4-6). On the other hand, Plaintiff was lawfully on his own front lawn with his two small dogs. (SS 1, 4). Based on the foregoing, Bernard clearly owed Plaintiff a duty to exercise ordinary care in controlling his dogs.

Bernard also owed the duty imposed by Civil Code 3342, regarding dog bites and the liability of owners, because he admitted he owned the dogs that charged onto Plaintiff's property and attacked. (SS 4-5).

With regard to negligent supervision, Bernard owed Plaintiff a duty to exercise reasonable care to control Quentin, Bernard's minor child, once Quentin's threatening conduct became apparent. The evidence establishes that on April 25, Quentin threatened Plaintiff in Bernard's presence on Plaintiff's property. (SS 12-18]. Bernard admitted Quentin was a minor, Bernard was responsible for him, Quentin listens to him, and that Quentin has a penchant to be "triggered." (SS 17-18, 39, 103). Despite the foregoing, Bernard did not remove or restrain Quentin on April 25, and he admitted he did not tell Quentin to go inside or restrain him before Quentin sprinted onto Plaintiff's lawn on April 27. (SS 18, 23-24, 40-45).

Based on the foregoing, Bernard owed Plaintiff a duty of care.

CONCLUSION

The motion is granted.